

ENTERPRISE SAAS SUBSCRIPTION & SLA AGREEMENT

CONFIDENTIAL & PROPRIETARY LEGAL INSTRUMENT

PREAMBLE. PARTIES AND RECITAL CLAUSES

This Cloud Software-as-a-Service and Service Level Agreement ("SaaS Agreement") is entered into on February 15, 2026, by and between CloudMetrics Enterprise Inc., a Delaware corporation with offices in Boston, MA ("Licensor"), and Apex Global Financial Corp., a New York corporation ("Licensee").

WHEREAS, Licensor has engineered a proprietary multi-tenant cloud telemetry and security monitoring SaaS platform; and WHEREAS, Licensee desires to subscribe to the SaaS platform subject to the performance commitments herein.

ARTICLE 1. DEFINITIONS AND INTERPRETATION

1.1 "Production Instance" means the high-availability cloud cluster hosted across multi-region availability zones dedicated to serving Customer traffic.

1.2 "Service Credits" means monetary credits calculated in accordance with Article 4 and redeemable exclusively against subsequent recurring subscription invoices.

1.3 "Scheduled Downtime" means maintenance intervals occurring between 01:00 AM and 04:00 AM Eastern Time on Sundays, announced at least five (5) business days prior.

ARTICLE 2. GRANT OF RIGHTS AND USAGE LIMITATIONS

2.1 Software Subscription: Subject to timely payment of fees, Licensor grants Licensee a worldwide, non-exclusive, non-sublicensable right to access and use the CloudMetrics Production Instance for up to 500 Authorized Enterprise Users during the Subscription Term.

2.2 Data Ingestion Quotas: Licensee is entitled to ingest up to 2.5 Terabytes of log traces and metrics per calendar month. Excess ingestion beyond 2.5 TB shall be billed at \$0.08 per additional Gigabyte, tabulated monthly in arrears.

ARTICLE 3. COMMERCIAL FEES AND PAYMENT TERMS

3.1 Annual Subscription Fee: Licensee shall pay an annual base platform fee of \$180,000, payable in advance within thirty (30) days from the receipt of Licensor's annual invoice.

3.2 Currency and Late Payment: All monetary figures are stated in United States Dollars (USD). Payments overdue by more than fifteen (15) calendar days following written reminder shall accrue interest at 1.0% per month.

3.3 Invoicing Disputes: In the event Licensee disputes any invoice in good faith, Licensee shall notify Licensor in writing within fifteen (15) days of receipt, detailing the disputed item. Undisputed amounts must be remitted on time.

ARTICLE 4. SERVICE LEVEL AGREEMENT & CREDIT REMEDIES

4.1 99.95% Availability Guarantee: Licensor guarantees that the Production Instance shall achieve a Monthly Availability Rate of at least 99.95% during each calendar month.

4.2 Credit Schedule: If availability drops below 99.95%, Licensee is entitled to credits as follows: (a) 99.50% to 99.94%: 10% credit; (b) 99.00% to 99.49%: 25% credit; (c) Less than 99.00%: 50% credit. Claims must be submitted within thirty (30) days following month-end.

4.3 Chronic Outage Termination: In the event Monthly Availability falls below 98.0% in any two (2) consecutive calendar months, or below 95.0% in any single calendar month, Licensee shall have the right to terminate this SaaS Agreement immediately upon written notice without penalty and receive a pro-rata refund of prepaid fees.

ARTICLE 5. DATA PROTECTION, BACKUPS AND RECOVERY

5.1 Encryption: All Customer telemetry in transit shall be encrypted using TLS 1.3, and all stationary data volumes shall be encrypted using AES-256.

5.2 Recovery Metrics: Licensor commits to a Recovery Point Objective (RPO) of not more than four (4) hours and a Recovery Time Objective (RTO) of not more than two (2) hours in the event of catastrophic datacenter failure.

ARTICLE 6. TERM, RENEWAL, AND TERMINATION CLAUSES

6.1 Initial Term: The initial subscription term shall be twenty-four (24) months starting on the Effective Date. The agreement shall renew automatically for successive 12-month periods unless either party delivers written notice of non-renewal at least sixty (60) days prior to expiration.

6.2 Termination for Cause: Either party may terminate immediately if the other party breaches a material covenant and fails to remedy the breach within thirty (30) days following receipt of written notification.

6.3 Termination for Convenience: Licensee may terminate this SaaS Agreement for convenience without cause at any time upon providing ninety (90) days advance written notice to Licensor. Prepaid platform fees for the current 12-month period shall be non-refundable, but future unbilled periods shall be canceled.

6.4 Post-Termination Data Portability: Upon expiration or termination, Licensor shall furnish Licensee with an export archive of all Customer telemetry in JSON/CSV format within ten (10) business days.

ARTICLE 7. LIMITATION OF REMEDIES AND LIABILITY

7.1 Cap on Direct Damages: Except for intentional breach of confidentiality or infringement indemnification, each party's maximum cumulative liability under this SaaS Agreement is capped at the fees paid or payable by Licensee in the twelve (12) months preceding the claim.

7.2 Consequential Damages Exclusion: Neither party shall be liable for loss of business opportunity, indirect loss, or punitive damages.

ARTICLE 8. GOVERNING LAW AND VENUE

8.1 Massachusetts Law: This SaaS Agreement is construed and enforced under the laws of the Commonwealth of Massachusetts, without regard to conflict of laws principles. The parties submit to the courts in Boston, Massachusetts.